

Sri Krishna v. State of U.P. — pending consumer complaint without stay does not bar recovery

High Court of Judicature at Allahabad · Division Bench · 15 July 2013 · Writ-C No. 37495 of 2013 · WRIT - C No. 37495 of 2013
· **Writ dismissed; recovery without stay valid; bills under clause 6.5.**

HEADNOTE

A pending District Consumer Forum complaint, without any stay of recovery, does not disable the licensee from recovering electricity dues or arresting the consumer on a recovery citation. Mandamus to correct bills according to meter reading was refused; the remedy is clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was dismissed.

FACTUAL SUMMARY

Sri Krishna was arrested on a recovery citation dated 1 April 2013 for electricity dues. He sought a writ of mandamus for his release and for correction of his bills according to meter reading. Complaint No. 75 of 2011 was pending before the District Consumer Forum; he argued that recovery could not issue while that complaint remained pending. Counsel for U.P. Power Corporation Ltd. appeared. The petitioner did not produce any stay of recovery from the Forum.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection

HOLDING

Pending Consumer Forum proceedings, without a stay, do not bar recovery of electricity dues. A prayer to correct bills according to meter reading is to be pursued under clause 6.5 of the Supply Code, not by writ. Petition dismissed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND METER READING

Court refused mandamus and pointed to the clause 6.5 remedy; it did not examine the bill on merits. ¶ 1